DATA SHARING AGREEMENT
(Data Controller to Data Controller)

This Agreement is made on:

Between:

1. **GM Business Support Limited** incorporated and registered in England and Wales with company number 08132524 whose registered office is at Lee House, 90 Great Bridgewater Street, Manchester, M1 5JW; and

2. **(Company Name)**, incorporated and registered in England and Wales with company number (X) whose registered office is at (Y);

each a ***Party*** and together, the ***Parties***.

Background:

A. The Parties have agreed to share personal data in relation to the Programme Support services

B. This agreement sets out the framework for the sharing of Personal Data (as defined below) between the Parties, each acting in their capacity as Data Controller. This is a free-standing agreement that does not incorporate commercial business terms.

The Parties agree to the following in relation to any Personal Data Processed as part of the Programme.

1. **Definitions**

"**Controller**", "**Processor**" and "**Data Subject**"	shall have the meaning given to those terms in the applicable Data Protection Laws;
"**Data Protection Impact Assessment**"	means an assessment of the impact of the envisaged Processing operations on the protection of Personal Data, as required by Article 35 of the GDPR;
"**Data Subject Request**"	means an actual or purported request, notice or complaint made by, or on behalf of, a Data Subject in accordance with the exercise of rights granted pursuant to the Data Privacy Laws in relation to the Data Subject's Protected Data;
"**Data Protection Laws**"	means (a) any law, statute, declaration, decree, directive, legislative enactment, order, ordinance, regulation, rule or other binding restriction (as amended, consolidated or re-enacted from

	time to time) which relates to the protection of individuals with regards to the Processing of Personal Data to which a Party is subject, including the Data Protection Act 2018 and the GDPR or, in the event that the UK leaves the European Union, all legislation enacted in the UK in respect of the protection of Personal Data; as well as the Privacy and Electronic Communications (EC Directive) Regulations 2003; and; and (b) any code of practice or guidance published by the ICO (or equivalent regulatory body) from time to time;
"**Data Sharing Particulars**"	means, in relation to any Processing under this Agreement: (a) the subject matter and duration of the Processing; (b) the nature and purpose of the Processing; (c) the type of Personal Data being Processed; and (d) the categories of Data Subjects; (e) the Permitted Purpose; (f) the relationship between the Parties as further described in Appendix A.
"**GDPR**"	means Regulation (EU) 2016/679 of the European Parliament and of the Council on the protection of natural persons with regard to the Processing of Personal Data;
"**ICO**"	means the UK Information Commissioner's Office, or any successor or replacement body from time to time;
"**Permitted Purpose**"	means the purpose of the Processing of Personal Data by the Parties as specified in the Data Sharing Particulars;
"**Personal Data**"	means any personal data (as defined in the Data Protection Laws) Processed by either Party in connection with the Agreement, as described in more detail in the Data Sharing Particulars;
"**Personal Data Breach**"	has the meaning set out in the Data Protection Laws;
"**Personnel**"	means all persons engaged or employed from time to time by the Data Controller in connection with this Agreement, including employees, consultants, contractors and permitted agents;
"**Processing**"	has the meaning set out in the Data Protection Laws (and "**Process**" and "**Processed**" shall be construed accordingly);

"**Restricted Country**"	means a country, territory or jurisdiction outside of the European Economic Area which the EU Commission has not deemed to provide adequate protection in accordance with Article 45(1) of the GDPR;
"**Security Requirements**"	means the requirements regarding the security of Personal Data, as set out in the Data Protection Laws (including, in particular, the measures set out in Article 32(1) of the GDPR (taking due account of the matters described in Article 32(2) of the GDPR)) as applicable;

2. **DATA PROTECTION**

2.1 **Nature of the Processing**

2.1.1 The Parties acknowledge that the factual arrangements between them dictate the role of each Party in respect of the Data Protection Laws. Notwithstanding the foregoing, each Party agrees that the nature of the Processing under this Agreement will be as follows:

(a) the Parties shall each Process the Personal Data;

(b) each Party shall act as a Controller in respect of the Processing of the Personal Data on its own behalf as described in Appendix A.

2.2 **Data Controller Obligations**

2.2.1 Each Party shall in relation to the Processing of the Personal Data comply with its respective obligations under the Data Protection Laws.

2.2.2 Without limiting the generality of the obligation set out in clause 2.1.1, in particular, each Party shall:

(a) ensure that all fair processing notices have been given (and/or, as applicable, consents obtained) and are sufficient in scope to enable each Party to Process the Personal Data as required in order to use the Personal Data for the Permitted Purpose;

(b) ensure that all Personal Data disclosed or transferred to, or accessed by, the other Party is accurate, up-to-date and complete to enable either Party to Process the Personal Data;

(c) work together to answer Data Subject Requests within 30 days and free of charge to the Data Subject;

(d) ensure that appropriate technical and organisational security measures are in place sufficient to comply with at least the obligations imposed on the Controller by the Security Requirements and where requested the each Party shall provide to the other evidence of its compliance with such requirements;

(e) support the other Party to make any required notifications to the ICO and/or other equivalent relevant regulator and affected Data Subjects;

(f) other Party in writing promptly of it becoming aware of any actual or suspected Personal Data Breach in relation to the Personal Data received from the other Party. Any such notice will include full details of the Personal Data involved and the types of Data Subjects affected. The Party notified shall provide reasonable support and assistance to the Party affected by the Personal Data Breach in notifying the ICO and/or Data Subjects (as appropriate).

(g) take reasonable steps to ensure the reliability of any of its Personnel who have access to the Personal Data;

(h) not transfer any Personal Data it is Processing to a Restricted Country, without first ensuring adequate safeguards are in place.

2.3 The Parties acknowledge that the arrangements outlined in this Schedule may need to be reviewed in light of a change in the Data Protection Laws. Each Party shall cooperate with the other Party in good faith to review and agree and document appropriate and reasonable changes to this Schedule to ensure that it addresses any change in the Data Protection Laws in accordance with good market practice.

3 RETENTION AND DISPOSAL OF DATA

3.1 The Parties acknowledge that the Personal Data shall be retained in accordance with Data Protection Laws and the Parties' respective retention policies and practices.

3.2 The Parties acknowledge and understand that each Party may wish retain some Personal Data following termination of the Programme and/or the Principal Agreement. Each Party agrees that it shall only do so where that Party may lawfully retain and use the relevant Personal Data, and will ensure the relevant Data Subjects are informed of this continued use.

3.3 If any Personal Data are no longer required by a Party following termination or expiry of the Principal Agreement, the Party shall securely destroy or delete such Personal Data as soon as reasonably possible following termination or expiry of the Principal Agreement.

4 DIRECT MARKETING

4.1 If the Parties process Personal Data for the purposes of direct marketing, the Parties will work together to ensure that:

4.1.1 the appropriate level of any necessary consents have been obtained from the relevant Data Subjects to allow the Personal Data to be used for the purposes of direct marketing in compliance with the Data Protection Laws (which may include ensuring that any such consent names both Parties); and

4.1.2 effective procedures are in place to allow relevant Data Subjects to 'opt-out' from the Parties using their Personal Data for such direct marketing purposes.

5. **INSURANCE**

5.1 Each Party agrees to obtain and keep in full force and effect at all times a policy or policies of insurance which, in the Party's reasonable view, covers its potential liabilities under this Agreement and to deliver to the other Party upon request:

(a) copies of all applicable insurance policies taken out pursuant to the provisions of this Agreement; and

(b) evidence of premiums paid in relation to such insurance.

6. **POINTS OF CONTACT**

6.1 Each Party shall appoint a single point of contact as set out in Appendix A who will work together to reach resolution with regards to any issues arising from the data sharing arrangement.

7. **CONFIDENTIALITY**

7.1 Each Party will use reasonable endeavours to keep confidential and not to disclose to any third party, other than its employees, officers and agents who reasonably need to receive the information for the purposes of carrying out its obligations under this Agreement, any information which is marked "confidential", described as "confidential" or which, by its nature or from the circumstances of its disclosure, should reasonably be presumed to be confidential.

7.2 The obligation in clause 7.1 shall survive termination of this Agreement for five (5) years, but will not apply to any information which:

7.2.1 was or becomes part of the public domain through no fault of the receiving Party;

7.2.2 becomes available to the receiving Party by an unconnected third party with the right to make such disclosure;

7.2.3 is approved in writing by the disclosing Party for release;

7.2.4 was independently developed by the disclosing Party; or

7.2.5 is required by law to be disclosed to any regulatory authority or court of competent jurisdiction, or which is required to be disclosed pursuant to a request under the Freedom of Information Act 2000.

8. **TERM**

8.1 This Agreement shall take effect on the last date of signature and shall remain in effect until 31st March 2020, or until terminated by either Party on three months' notice in writing.

9. **GENERAL**

9.1 No Party shall use the other Party's name or logo in any press release or product advertising, or for any other commercial purpose, without the prior written consent of that Party.

9.2 No variation of this Agreement shall be effective unless it is in writing and signed by the authorised representative of each Party.

9.3 No failure or delay by a Party to exercise any right or remedy provided under this Agreement or by law shall constitute a waiver of that or any other right or remedy, nor shall it prevent or restrict the further exercise of that or any other remedy. No single or partial exercise of such right or remedy shall prevent or restrict the further exercise of that or any other right or remedy.

9.4 A person who is not a Party to this Agreement shall have no rights under the Contracts (Rights of Third Parties) Act 1999 to enforce any term of this Agreement.

9.5 Nothing in this Agreement is intended to, or shall be deemed to, establish any partnership or joint venture between any of the Parties, constitute any Party the agent of another Party, or authorise any Party to make or enter into any commitments for or on behalf of any other Party.

9.6 This Agreement constitutes the entire agreement between the Parties and supercedes and extinguishes all previous agreements, promises, assurances, warranties, representations and understandings between them, whether written or oral, relating to the subject matter.

10. **LAW AND JURISDICTION**

10.1 This Agreement and any dispute or claim arising out of or in connection with it or its subject matter or formation (including non-contractual disputes or claims) shall be governed by and construed in accordance with the law of England and Wales.

10.2 Each Party agrees that the courts of England and Wales shall have exclusive jurisdiction to settle any dispute or claim arising out of or in connection with this Agreement or its subject matter or formation (including non-contractual disputes or claims).

Signed in English and agreed by the Parties through their authorised signatories:

For and on behalf of GM BUSINESS SUPPORT LIMITED:

Position _____

Name _____

Signature _____

Date _____

For and on behalf of (NAME OF GROWTH HUB / LEP)

Position _____

Name _____

Signature _____

Date _____

Appendix A

Data Protection Particulars (To be Completed)

The subject matter and duration of the Processing	xxx
The nature and purpose of the Processing	xx
The type of Personal Data being Processed	xx
The categories of Data Subjects	xx
Permitted Purpose	xx
Relationship between the Parties	xx

Points of Contact

GM BUSINESS SUPPORT LIMITED	*Name:* *Position:* *Email Address:*
(NAME OF GROWTH HUB / LEP),	*Name:* *Position:* *Email Address:*